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U.S. DISTRICT COURT E.D.N.Y.

★ JAN 07 2011 ★

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

----- X  
DARNELL BLOUNT,

BROOKLYN OFFICE

Plaintiff,

-against-

COMPLAINT

CITY OF NEW YORK, CHRISTOPHER  
McGUINNESS, ROBERT MAYER, and  
JOHN/JANE DOES 1 through 4,

**CV 11-0124**

Defendants.  
----- X

PLAINTIFF DEMANDS  
A TRIAL BY JURY

**COGAN J.**

Plaintiff Darnell Blount, by his attorneys, Reibman & Weiner, as and for his  
Complaint, hereby allege as follows, upon information and belief:

**PARTIES, VENUE and JURISDICTION**

1. At all times hereinafter mentioned plaintiff Darnell Blount was an adult male and a resident of Kings County in the State of New York.
2. At all relevant times hereinafter mentioned, defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
3. At all times hereinafter mentioned, defendant Christopher McGuinness was a member of the NYPD, and was employed, retained, trained and supervised by New York City. McGuinness is sued herein in his official and individual capacities.
4. At all times hereinafter mentioned, defendant Robert Mayer was a member of the NYPD, and was employed, retained, trained and supervised by New York City. Mayer is

sued herein in his official and individual capacities.

5. At all relevant times hereinafter mentioned, defendants John and Jane Does 1 through 4 were adult males and females whose identities are presently unknown who were employed by the City of New York as NYPD Police Officers. The Doe defendants are sued herein in their official and individual capacities.

6. Plaintiff timely served a Notice of Claim on the municipal defendant and complied with all conditions precedent to commencing an action under state law with respect to his state law claims for malicious prosecution and false imprisonment.

7. At least thirty days have elapsed since service of plaintiff's Notice of Claim and adjustment and payment thereof has been neglected or refused.

8. That the within action has been initiated within one year and ninety days of the happening of the events of which plaintiff complains.

9. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. § 1983.

10. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq. in the Eastern District of New York, where the plaintiff and defendant City of New York reside, and where the events complained of herein occurred.

#### **RELEVANT FACTS**

11. On or about March 31, 2009, at or around 9:00 a.m., plaintiff was present and asleep in a vehicle owned and driven by another individual on Conduit Avenue in Kings County, New York.

12. Plaintiff was woken by sounds of the car being forcibly entered by various

police officers, including defendant Mayer and possibly the Doe defendants. During the course of these events, plaintiff was struck repeatedly across his legs with a foreign object.

13. The driver of the car attempted to maneuver vehicle away from the officers but crashed into street sign or lamp post. The driver exited the vehicle and fled on foot.

14. Plaintiff, who was unaware as to why the officers had attempted to stop and enter the vehicle, and who was injured and stunned, exited the vehicle, but did not attempt to flee.

15. Defendant Mayer and the Doe defendants arrived moments later. Demanding to know where the driver had gone, the defendants repeatedly struck and assaulted plaintiff, both before and after he was placed in handcuffs.

16. At no time during these events did plaintiff strike or otherwise attempt to strike any of the officers, resist arrest, or otherwise engage in any unlawful conduct. No probable cause existed for plaintiff's arrest, and there was no reasonable basis to believe such cause existed.

17. At no time during these events was there any basis for any of the defendants to employ any force of any kind against plaintiff, much less the force actually used, and there was no reasonable basis to believe any such force was necessary or justified.

18. On April 1, 2009, plaintiff was taken by the defendants to Brookdale University Hospital and Medical Center ("Brookdale") for treatment of injuries inflicted by the defendants during the course of plaintiff's arrest.

19. Defendant McGuiness was assigned to guard plaintiff while he was at Brookdale.

20. While plaintiff was at Brookdale, the defendants denied him access to a bathroom. When plaintiff complained, McGuiness placed further physical restraints on him.

21. McGuiness then claimed that plaintiff had deliberately bitten his finger while McGuiness was attempting to place handcuffs on Mr. Blount.

22. This claim was materially false as plaintiff did not bite, nor attempt to bite, nor engage in any conduct that could reasonably appear to be an attempt to bite, McGuiness, and McGuiness knew his claim to be false when he made it.

23. Plaintiff was transported from Brookdale to Kings County Central Booking, at which time he was arraigned on various charges relating to an alleged vehicular assault on the defendants by the driver of the vehicle. These charges were predicated on false allegations by the defendants that plaintiff had participated with the driver of the vehicle in the unlawful operation of the vehicle.

24. Plaintiff was then remanded to custody without bail.

25. In or about May 2009, defendants Mayer and McGuiness testified before the grand jury concerning the arrest of plaintiff.

26. Mayer testified falsely before the grand jury that plaintiff attempted to flee the scene of the arrest.

27. McGuiness testified falsely before the grand jury that plaintiff was behaving badly, and yelling, screaming and kicking a wall. McGuiness gave further false testimony that when he attempted to place handcuffs on Mr. Blount, the plaintiff bit his finger, causing him to suffer a physical injury.

28. In truth, while plaintiff did verbally express his displeasure at being

deliberately denied access to a bathroom by the defendants, at no point did he engage in the histrionics claimed by the defendants.

29. Moreover, at no time did plaintiff engage in any conduct that could reasonably be understood as an attempt to bite or injure McGuiness, much less actually bite or injure McGuiness, and all such testimony by McGuiness to that effect was materially false.

30. On or about May 8, 2009, the grand jury issued a twelve-count indictment. The first nine counts were solely against the driver of the vehicle and concerned his operation of the vehicle on March 31, 2009.

31. Plaintiff was named in counts ten, eleven and twelve, which alleged that he assaulted McGuiness and obstructed governmental administration, while at Brookdale on April 1, 2009.

32. Plaintiff was not indicted for any alleged criminal conduct involving the operation of the vehicle, or any other actions, that occurred on March 31, 2009.

33. Bail was set for plaintiff based on this falsely procured indictment, and plaintiff, who could not raise the bail required by the court, remained in custody throughout the remaining proceedings.

34. On August 4, 2010, plaintiff's criminal case went to trial. Both Mayer and McGuiness testified against plaintiff.

35. On August 6, 2010, the jury returned a verdict of acquittal in favor of plaintiff on all three counts.

36. The claims by Mayer and McGuiness as to plaintiff's alleged criminal conduct were materially false, and defendants knew them to be false when they made them.

37. As a direct result of defendants' false statements, plaintiff was subjected to criminal process.

38. As a direct result of defendants' false statements, plaintiff was subsequently indicted.

39. Throughout the prosecution of plaintiff, the defendants intentionally and deliberately gave false statements, failed to file accurate or corrective statements, and/or failed to report the conduct of the defendants who engaged in the misconduct described herein as required.

40. As a direct result of the defendants' misconduct, plaintiff was incarcerated for more than sixteen months while his case proceeded.

41. On August 6, 2010, plaintiff was finally released from the custody of the City of New York Department of Corrections, which had imprisoned plaintiff since April 1, 2009.

42. At no time did the defendants have sufficient legal cause to arrest plaintiff, nor was there a reasonable basis for defendants to believe that such cause existed.

43. At no time was there probable cause to believe that plaintiff could be successfully prosecuted, and that any belief held by the prosecution was founded on evidence that was fabricated by defendants, which defendants first manufactured and then sought to cover up through their false statements.

44. That at all times relevant herein, the defendants, including the Doe defendants, were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

## FIRST CAUSE OF ACTION

45. Plaintiff repeats the allegations contained in paragraphs "1" through "44" above as though stated fully herein.

46. The individual defendants willfully and intentionally seized and arrested plaintiff without probable cause, and without a reasonable basis to believe such cause existed.

47. Defendant Mayer and the John Doe defendants employed physical force against plaintiff by striking him with their batons and other objects, as well as using their fists, feet and knees to assault him, during the course of his arrest, despite the complete absence of any possible justification for using such force.

48. The individual defendants caused plaintiff to be imprisoned during the duration of his criminal proceedings, i.e., from March 31, 2009, to August 6, 2010. Plaintiff was conscious of his confinement and did not consent thereto.

49. The individual defendants willfully and intentionally caused criminal process to be commenced against the plaintiff for which there was no probable cause by maliciously fabricating evidence against him and/or lying about the circumstances of his arrest.

50. By so doing, the individual defendants, individually and collectively, subjected the plaintiff to false arrest and imprisonment, excessive force, unlawful searches of person and property, denial of due process, and malicious prosecution, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

51. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish,

incarceration and the deprivation of liberty, and the loss of their constitutional rights.

## **SECOND CAUSE OF ACTION**

52. Plaintiff repeats the allegations contained in paragraphs "1" through "51" above as though stated fully herein.

53. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within the NYPD.

54. Upon information and belief, defendant knew that there was inadequate supervision within the NYPD prior to plaintiff's arrest with respect to its members' abuse of their authority, use of excessive force and abuse of arrest powers. Despite the prior notice of inadequate supervision, defendant took no steps to ensure that reasonable and appropriate levels of supervision were in place in order to reasonably provide that NYPD employees, and their agents, engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiff herein.

55. Defendant was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiff's rights in particular.

56. Defendant City of New York also deliberately and intentionally chose not to take action to correct the chronic, systemic and institutional misuse and abuse of authority by its employees and agents, or the acts of omission and commission designed to cover up said bad acts, and thereby deliberately and intentionally adopted, condoned, and otherwise created



through deliberate inaction and negligent supervision, an NYPD policy, practice and custom of utilizing illegal and impermissible arrests, detentions, and uses of force in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, up to and beyond the plaintiff's arrest.

57. By reason thereof, defendant have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

### **THIRD CAUSE OF ACTION**

58. Plaintiff repeats the allegations contained in paragraphs "1" through "57" above as though stated fully herein.

59. Plaintiff was subjected to false imprisonment and malicious prosecution by the defendants.

60. At no time did defendants have any legal basis for imprisoning plaintiff or commencing criminal process against him. Nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable or otherwise appropriate.

61. The defendants are therefore liable to plaintiff for false imprisonment and malicious prosecution.

62. By reason thereof, defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

### **FOURTH CAUSE OF ACTION**

63. Plaintiffs repeat the allegations contained in paragraphs "1" through "62" above as though stated fully herein.

64. The defendants, individually, jointly and severally, and through their agents, servants, employees, and/or associates were responsible for the proper, adequate and necessary police and law enforcement conduct with respect to any interaction with plaintiffs.

65. The police and law enforcement conduct engaged in and rendered to plaintiffs by the individual defendants, individually, jointly and through their agents, servants, employees, and/or associates was careless and negligent and not in accordance with good and accepted police and law enforcement practices and in violation of NYPD policies and procedures and was not otherwise reasonable conduct under the circumstances then and there existing.

66. As a result of the carelessness and negligence and violation of NYPD procedures and policies by the respective defendants, their agents, servants, employees and/or associates, plaintiffs were caused to sustain severe and irreparable personal injury and damage.

67. By reason thereof, the defendants have caused plaintiff to suffer emotional and physical injury, mental anguish, and to be unlawfully incarcerated..

#### **DEMAND FOR A JURY TRIAL**

Pursuant to Fed. R. Civ. P. 38, plaintiffs hereby demand a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. on the first cause of action actual and punitive damages in an amount to be determined at trial;
- ii. on the second cause of action actual and punitive damages in an amount to be determined at trial;
- iii. on the third cause of action actual and punitive damages in an amount to be determined at trial;
- iv. on the fourth cause of action actual and punitive damages in an amount to be determined at trial;
- v. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of this action; and
- vi. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York  
January 3, 2011

REIBMAN & WEINER

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